
This Is Samuel Alito's Ugliest Dissent in Some Time

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You don't need to kill anyone to be put to death in Texas. The state doesn't need your fingerprints on the weapon, your DNA on the body, or your shadow in the doorway. It just needs you nearby and legally adjacent to the violence. And if the blood under the victim's fingernails turns out to be someone else's? If the DNA proves you weren't the one who did it? Texas shrugs. It wants the execution to proceed.

That's the legal terrain Ruben Gutierrez has spent more than two decades navigating and that finally resulted in the Supreme Court's intervention on Thursday. Convicted in 1999 for the murder of Escolastica Harrison, an 85-year-old woman killed during a robbery in her home, Gutierrez has always admitted to helping plan the crime. He knew that Harrison kept large sums of money hidden in her mobile home, and he and two others intended to steal it. That admission is why not even Gutierrez claims full innocence. But partial guilt is not the same as death eligibility. Gutierrez insists he wasn't in the room when Harrison was killed. He didn't wield the screwdriver used to stab her. He didn't intend to harm her. He didn't anticipate that she would die. That distinction, under Texas law, matters; not just morally but legally.

Texas law allows a person to be convicted of capital murder if they were a party to the underlying felony and someone was killed in the course of it. But to sentence someone to death, the jury must go further. It must find that the defendant caused the death, intended it, or at least anticipated it. That's the line Gutierrez has spent years trying to draw—between being part of a robbery gone wrong and being the reason a woman is dead. And that's why he has sought DNA testing of physical evidence recovered from the scene—fingernail scrapings, bloodstains, and hair—that could show that someone else committed the killing. If the evidence reveals that he was not physically present at the murder, it could unravel the jury's finding that he met the legal threshold for death.

Texas refused. Its postconviction DNA-testing statute permits access only if the evidence would likely have changed the outcome of the trial. And since Gutierrez was convicted under Texas' law of parties—a legal mechanism that holds responsible for murder participants in a crime that resulted in that murder—the state insisted that proving that someone else committed the murder wouldn't necessarily matter. He could still be held accountable under a theory of shared responsibility. In Texas' eyes, DNA demonstrating that Gutierrez wasn't the killer might be scientifically conclusive but legally meaningless.

When Gutierrez sued under Section 1983, claiming that Texas' DNA-testing procedures violated his right to procedural due process, the U.S. Court of Appeals for the 5th Circuit dismissed the case. It held that Gutierrez lacked standing: that even if the DNA proved that someone else had done the killing, it wouldn't redress the injury, because the law could still permit his execution. The result was a ruling that elevated legal form over factual inquiry, treating the death penalty as a sealed outcome rather than a sentence contingent on truth.

On Thursday, the Supreme Court reopened that door. In a 6–3 decision, it held that Gutierrez *does* have standing to pursue his procedural due process claim in federal court. Chief Justice John Roberts, writing for the majority, rejected the state's argument that the potential impact of the DNA evidence was too speculative. The issue wasn't whether Gutierrez would ultimately prevail; it was

whether the DNA evidence he seeks to test could, if favorable, plausibly support a renewed challenge to his death sentence. And it could. If that evidence shows that someone else inflicted the wounds—if it casts doubt on whether Gutierrez caused, intended, or anticipated Harrison’s death—it vitiates the findings that made him eligible for the death penalty. And that, Roberts wrote, is enough to establish standing.

It is a subdued assertion of what should be self-evident: that the law cannot claim legitimacy if it shields itself from the facts it purports to judge. That finality is not a license for ignorance. That procedural rules are not meant to entomb the truth, especially when the state seeks to end a life.

We live in an era when the capacity to be shocked by what members of this court are willing to defend has all but collapsed. And yet, even in that desensitized landscape, Justice Samuel Alito’s dissent in *Gutierrez* manages to stun. He, joined by Justices Clarence Thomas and Neil Gorsuch, argued that Gutierrez’s claim should have been tossed from the start.

In their view, the state can strap a man to a gurney and stop his heart even if the law forbids it so long as the process doesn’t flinch and the record stays closed. It is a vision of justice so warped that the legality of death depends not on what happened but on whether anyone is still allowed to care.

Because Texas allows accomplice liability in capital cases, Alito reasoned, it didn’t matter whether Gutierrez was the actual killer, so DNA testing that might identify someone else wouldn’t change the outcome. The majority, he warned, was inviting an endless wave of litigation over evidence that could never truly exonerate a person under Texas law.

But this is more than procedural stinginess. It is a philosophy of deliberate obliviousness. Alito’s dissent reduces the death penalty to a matter of bureaucratic form in which the sentence rests not on what happened but on how skillfully the prosecution framed the murder. Rather than treating DNA as a tool for truth, it sees it as a threat to tidy verdicts. In this view, the only error worth acknowledging is one that fits neatly within existing doctrine; everything else, even proof that the state does not have the authority to extinguish a life, is noise.

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And that's what makes it so chilling. The dissent is hostile not just to Gutierrez. It's hostile to the very idea that new facts should have power. It reflects a jurisprudence in which legal theories matter more than human lives, in which a man can be executed as long as the state dots the right i's, even if he didn't do the thing it's killing him for. The cruelty, as always, is not incidental. It's a feature of a system that, way too often, protects its own inertia above all else.

And it exposes something deeper about how the law handles its most final punishment: its willingness to seal off inquiry precisely when the stakes are highest. *Gutierrez* is not merely a dispute about legal thresholds. It's a window into how death-penalty doctrine has learned to forget. How it has perfected the art of procedural insulation. How it builds walls around verdicts—not because they are trustworthy, but because they are old.

DNA, in this system, is threatening because it might demand that the machinery slow down. It might say: *This man should not die for what he did not do.*

In this case, the court did not order testing. It did not resolve the constitutional claim. But it cleared the fog of legal fatalism and said, at least, that the possibility of truth still has standing. That if science might call the state's story into question, the law must not turn away.

Gutierrez's case now returns to the lower courts. The evidence remains untested. The verdict remains intact. But something essential has been reasserted in spite of the intransigence of the 5th Circuit and three extreme members of the court: that facts still matter. That a death sentence is not a license for indifference. That there remains, even now, a narrow place for light.

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